

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Annette Rodriguez	Team: Squad #08	CCRB Case #: 202205561	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 08/13/2022 8:23 PM, Saturday, 08/13/2022 8:30 PM	Location of Incident: Baisley Boulevard & Merrick Boulevard in Queens.	18 Mo. SOL 2/13/2024	Precinct: 113
Date/Time CV Reported Fri, 08/19/2022 6:15 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 08/19/2022 7:53 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Anthony Sparacio	29410	971238	113 PCT
2. An officer			
3. PO Joseph Olivero	28483	965380	113 PCT
4. SGT Guerdy Guerrier	02096	953936	113 PCT
5. SGT Michael Desetto	01546	951183	FTU 19
6. PO Louis Wirth	23883	958173	113 PCT
7. PO Anthony Mkwanaazi	03239	964659	113 PCT
8. PO Eric Jordan	09041	941973	113 PCT
9. SGT Louis Villegas	01814	953533	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Trevor Engblom	27288	973375	FTU 19
2. PO Andonios Constantatos	25868	959563	PBQS SU PST
3. PO Mark Anderson	27500	950003	PBQS SU PST
4. PO Matthew Locascio	12856	951929	113 PCT
5. PO Paoloding Fulgencio	05600	961523	113 PCT
6. SGT Michael Wigdzinski	04923	951438	113 PCT
7. PO Tessa Piteo	26046	965418	113 PCT
8. PO Anthony Lombardi	13302	967967	113 PCT
9. PO Jeremy Kusmierski	12386	955030	113 PCT
10. PO Sean Roberts	21497	962736	113 PCT
11. PO Patrick Wright	10855	961462	113 PCT
12. PO Christopher Rios	27724	973709	FTU 19
13. DTS Corey Sarro	04537	953370	ESS 09
14. PO Alex Mills	09578	959819	PBQS SU PST

Officer(s)	Allegation	Investigator Recommendation
A . PO Joseph Olivero	Abuse: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Joseph Olivero threatened to arrest § 87(2)(b)	A . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
B . PO Anthony Sparacio	Force: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Anthony Sparacio used physical force against § 87(2)(b)	B . Miscellaneous - Subject Resigned
C . PO Anthony Sparacio	Discourtesy: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Anthony Sparacio spoke discourteously to § 87(2)(b)	C . Miscellaneous - Subject Resigned
D . PO Anthony Sparacio	Abuse: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Anthony Sparacio threatened to arrest § 87(2)(b)	D . Miscellaneous - Subject Resigned
E . An officer	Force: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, an officer used physical force against § 87(2)(b)	E . Unfounded
F . PO Joseph Olivero	Force: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Joseph Olivero used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . PO Anthony Sparacio	Force: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Anthony Sparacio used physical force against § 87(2)(b)	G . Miscellaneous - Subject Resigned
H . SGT Guerdy Guerrier	Abuse: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Sergeant Guerdy Guerrier threatened to arrest § 87(2)(b)	H . Within NYPD Guidelines
I . SGT Guerdy Guerrier	Discourtesy: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Sergeant Guerdy Guerrier spoke discourteously to § 87(2)(b)	I . Within NYPD Guidelines
J . PO Eric Jordan	Discourtesy: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Eric Jordan spoke discourteously to § 87(2)(b)	J . Within NYPD Guidelines
K . PO Eric Jordan	Discourtesy: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Eric Jordan spoke discourteously to § 87(2)(b)	K . Within NYPD Guidelines
L . SGT Louis Villegas	Abuse: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Sergeant Louis Villegas threatened to arrest § 87(2)(b)	L . Within NYPD Guidelines
M . SGT Michael Desetto	Discourtesy: On August 13, 2022, at the 113th Precinct located at 167-02 Baisley Boulevard in Queens, Sergeant Michael Desetto spoke discourteously to § 87(2)(b)	M . Substantiated
N . PO Louis Wirth	Abuse: On August 13, 2022, at the 113th Precinct located at 167-02 Baisley Boulevard in Queens, Police Officer Louis Wirth damaged § 87(2)(b)'s property.	N . Unfounded
O . PO Anthony Mkwanazi	Discourtesy: On August 13, 2022, at the 113th Precinct located at 167-02 Baisley Boulevard in Queens, Police Officer Anthony Mkwanazi spoke discourteously to § 87(2)(b)	O . Within NYPD Guidelines

Case Summary

On August 19, 2022, § 87(2)(b) filed this complaint via the CCRB's call processing system.

On August 13, 2022, at approximately 8:23 p.m., § 87(2)(b) was arrested for § 87(2)(b) on Baisley Boulevard and Merrick Boulevard, in Queens (Board Review 01). During the interaction, PO Joseph Olivero of the 113th Precinct, told § 87(2)(b) that he was "going to go in cuffs" if he did not back up (**Allegation A: Abuse of Authority, Within NYPD Guidelines**). PO Anthony Sparacio of the 113th Precinct, then pushed § 87(2)(b) (**Allegation B: Force, Misc.-Subject Resigned**). PO Sparacio told § 87(2)(b) to "back the fuck up" (**Allegation C: Discourtesy, Misc.-Subject Resigned**). PO Sparacio asked § 87(2)(b) girlfriend, § 87(2)(b) "Do you want to get locked up?" (**Allegation D: Abuse of Authority, Misc.-Subject Resigned**). § 87(2)(b) was then allegedly struck in the back of the head twice by an officer with an unknown object (**Allegation E: Force, Unfounded**). § 87(2)(b) was then taken to the ground by PO Olivero and PO Sparacio (**Allegation F: Force, Within NYPD Guidelines**) (**Allegation G: Force, Misc.-Subject Resigned**).

Sgt. Guerdy Guerrier of the 113th Precinct arrived on scene and told § 87(2)(b) that if she did not walk away, she would be taken to the 113th Precinct (**Allegation H: Abuse of Authority, Within NYPD Guidelines**). Sgt. Guerrier then told § 87(2)(b) "You can sue, I don't give a fuck" (**Allegation I: Discourtesy, Within NYPD Guidelines**). PO Eric Jordan of the 113th Precinct then told § 87(2)(b) "Get out of my fucking face" (**Allegation J: Discourtesy, Within NYPD Guidelines**). PO Jordan then told § 87(2)(b) "Why don't you do yourself a fucking favor and listen" (**Allegation K: Discourtesy, Within NYPD Guidelines**). Sgt. Louis Villegas of the 113th Precinct then told § 87(2)(b) that she was "about to get arrested" (**Allegation L: Abuse of Authority, Within NYPD Guidelines**).

§ 87(2)(b) was then transported to the 113th Precinct, where Sgt. Michael Desetto of the Field Training Unit stated, "Get this guy out of the car, we are not his fucking slaves" (**Allegation M: Discourtesy, Substantiated**). § 87(2)(b) chain necklace was allegedly broken at the stationhouse by PO Louis Wirth of the 113th Precinct (**Allegation N: Abuse of Authority, Unfounded**). PO Anthony Mkwanaazi of the 113th Precinct then told § 87(2)(b) "Can you not fucking spit" (**Allegation O: Discourtesy, Within NYPD Guidelines**). § 87(2)(b) was transported to the 113th Precinct stationhouse where she was released with a summons.

The investigation requested and received BWC footage of this incident from PO Sparacio, PO Olivero, Sgt. Guerrier, PO Wirth, PO Mkwanaazi, Sgt. Michael Wigdzinski, PO Matthew Locascio, PO Paoloding Fulgencio, PO Tessa Piteo, PO Anthony Lombardi, PO Jeremy Kusmierski, PO Sean Roberts, and PO Patrick Wright all from the 113th Precinct. BWC footage was also obtained from Sgt. Desetto, PO Christopher Rios, and PO Trevor Engblom of the Field Training Unit, Det. Corey Sarro of the Emergency Services Unit, and PO Alex Mills, PO Andonios Constantatos, and PO Mark Anderson all of Patrol Borough Queens South (Board Review 02).

Stationhouse footage of this incident was also requested and received from the 113th Precinct (Board Review 16).

Findings and Recommendations

Allegation (B) Force: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Anthony Sparacio used physical force against § 87(2)(b)
Allegation (E) Force: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in

Queens, an officer used physical force against § 87(2)(b)

Allegation (F) Force: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Joseph Olivero used physical force against § 87(2)(b)

Allegation (G) Force: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Anthony Sparacio used physical force against § 87(2)(b)

§ 87(2)(b) was interviewed by the CCRB on September 7, 2022. On August 13, 2022, at approximately 8:23 p.m., § 87(2)(b) was on the Q85 bus with § 87(2)(b) headed to § 87(2)(b) after he cut himself while cooking. § 87(2)(b) was bleeding from his finger. § 87(2)(b) had a few shots of tequila and a beer while he was cooking. § 87(2)(b) described his level of intoxication as not being in the “clearest state of mind” and stated, “I was under the influence, I was feeling good.” § 87(2)(b) and § 87(2)(b) exited the bus to use the restroom when § 87(2)(b) realized that he left the rag he was using to stop his bleeding on the bus. § 87(2)(b) observed approximately three officers walking towards him. The bus remained at the stop. § 87(2)(b) asked the bus driver, through the closed door, if he could get back on the bus. The bus driver did not open the door. At the same time as § 87(2)(b) began knocking, PO Sparacio told § 87(2)(b) to move and pushed § 87(2)(b). § 87(2)(b) did not recall what officers told him as he was “not trying to hear what the officers were saying.” § 87(2)(b) was then struck in the back of the head with an unknown object twice by an officer whom he did not recall. His head bled from being struck. § 87(2)(b) was handcuffed and then slammed onto the ground. § 87(2)(b) did not recall who slammed him onto the ground. § 87(2)(b) then stood back up. § 87(2)(b) did not recall if he did anything with his body in response to the officers using force against him but stated that some things are “involuntary.” § 87(2)(b) may have tried to grab or hold an officer so that they would not slam him. § 87(2)(b) was then slammed to the ground for a second time, and he did not attempt to stand up again. Officers, whom § 87(2)(b) did not recall, then picked him up off the ground and placed him inside of a police vehicle (Board Review 09).

BWC footage shows that § 87(2)(b) was not hit on the head with any object. § 87(2)(g)

PO Sparacio’s BWC footage shows at the 00:52 timestamp of the video recording, § 87(2)(b) is instructed to back up numerous times by PO Olivero and PO Sparacio. § 87(2)(b) is standing in the street, seemingly blocking the bus from leaving. § 87(2)(b) refuses and yells that he has blood on his hand. At 00:55, PO Sparacio pushes § 87(2)(b) away from him as he instructs him to back up. At 1:02, § 87(2)(b) approaches PO Sparacio and PO Sparacio pushes him back near the sidewalk as he yells, “Back up! Back the fuck up” (analyzed below). § 87(2)(b) and § 87(2)(b) then approach and yell at PO Sparacio for not allowing § 87(2)(b) to retrieve his property from the bus (Board Review 02).

PO Olivero’s BWC footage shows at the 2:36 timestamp of the video recording, PO Olivero is on the bus and approaches the door which is open. § 87(2)(b) is outside of the bus asking PO Anderson to enter the bus with him to retrieve his property. At 2:37, PO Olivero tells § 87(2)(b) that his only property on the bus was his hat. § 87(2)(b) states that he has his bag on the bus as he approaches the bus door. At 2:40, PO Olivero guides § 87(2)(b) away from the bus door and instructs him to back up and states that he is not getting on the bus. At 2:45, PO Olivero allows § 87(2)(b) onto the bus to retrieve § 87(2)(b) property. At 2:48, PO Olivero states that § 87(2)(b) cannot get on the bus because he is “clearly drunk.” At 2:50, § 87(2)(b) replies “no” and states that PO Olivero is acting like an “asshole.” At 2:52, PO Olivero repeatedly tells § 87(2)(b) that he is not getting on the bus. § 87(2)(b) repeatedly calls PO Olivero a “faggot” as PO Olivero instructs him to

back up numerous times. PO Olivero pushes § 87(2)(b) back towards the sidewalk and a struggle ensues (Board Review 02).

PO Anderson's BWC footage shows at the 2:40 timestamp of the video recording, PO Olivero is standing inside of the bus near the door. § 87(2)(b) is standing outside of the bus door, and he repeatedly calls PO Olivero a "faggot" while being instructed to back up. At 2:42, § 87(2)(b) tells PO Olivero to stop touching him and walks closer to him. PO Olivero pushes § 87(2)(b) back towards the sidewalk and steps off the bus. At 2:43, § 87(2)(b) places PO Olivero in a headlock and PO Olivero and PO Sparacio take § 87(2)(b) to the ground. § 87(2)(b) is held on the ground by numerous officers as PO Sparacio handcuffs him. § 87(2)(b) is handcuffed, and the officers stand up off the ground (Board Review 02).

Sgt. Guerrier was interviewed by the CCRB on January 4, 2023. Sgt. Guerrier testified that he responded to a radio call for additional units made by either PO Olivero or PO Sparacio. Upon arrival, Sgt. Guerrier observed § 87(2)(b) handcuffed and seated on the sidewalk. Sgt. Guerrier learned from PO Sparacio that § 87(2)(b) and § 87(2)(b) were noncompliant and refused numerous orders to back up. § 87(2)(b) then tried to fight them and was taken to the ground and handcuffed by PO Sparacio and PO Olivero. Sgt. Guerrier did not learn at any point of any officer having hit § 87(2)(b) on the head with an object prior to his arrival (Board Review 03).

PO Jordan was interviewed by the CCRB on February 9, 2023. PO Jordan arrived on scene in response to a call for additional units, after § 87(2)(b) was handcuffed. PO Jordan heard that § 87(2)(b) had placed PO Olivero in a headlock and was taken to the ground to be restrained. PO Jordan did not learn, at any point, of any officer having hit § 87(2)(b) on the head with any object (Board Review 06).

PO Mkwanaazi was interviewed by the CCRB on February 1, 2023, and Sgt. Desetto was interviewed by the CCRB on February 2, 2023. Both PO Mkwanaazi's and Sgt. Desetto's statements were generally consistent with that of Sgt. Guerrier and PO Jordan (Board Review 05 & 04).

According to NYPD Patrol Guide Procedure 221-01, in all circumstances, any application or use of force must be reasonable under the circumstances. MOS will use only the reasonable force necessary to gain control or custody of a subject (Board Review 10).

The investigation contacted the 113th Precinct stationhouse and learned that PO Sparacio resigned from the NYPD and has not been a member of service since January 17, 2023. On March 2, 2023, the investigation requested confirmation of PO Sparacio's separation of service from DAO which will be added to the case file upon receipt. It is therefore recommended that **Allegation B** and **Allegation G** be closed as **Subject Resigned**.

§ 87(2)(g)
It is therefore recommended that **Allegation F** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation E** be closed as **Unfounded**.

Allegation (A) Abuse of Authority: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Joseph Olivero threatened to arrest § 87(2)(b)

Allegation (D) Abuse of Authority: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Anthony Sparacio threatened to arrest § 87(2)(b)

Allegation (H) Abuse of Authority: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Sergeant Guerdy Guerrier threatened to arrest § 87(2)(b)

Allegation (L) Abuse of Authority: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Sergeant Louis Villegas threatened to arrest § 87(2)(b)

§ 87(2)(g)

The investigation made a reasonable number of contact attempts to reach § 87(2)(b) for a statement but was unsuccessful.

PO Engblom's BWC footage shows at the 00:59 timestamp of the video recording, § 87(2)(b) is standing in the street in front of a bus, apparently preventing it from leaving, gesturing with his hands at the bus driver, as he states his "stuff" is on the bus. PO Sparacio asks § 87(2)(b) what is going on and he states that he wants to get his "stuff" off the bus as he approaches the closed bus door. At 1:21, PO Olivero asks § 87(2)(b) to back up and § 87(2)(b) yells at PO Olivero to stop touching him. PO Olivero gives § 87(2)(b) numerous commands to back up out of the street as he guides him towards the sidewalk. At 1:50, § 87(2)(b) approaches PO Olivero and asks why he keeps touching him. PO Olivero states, "You're going to go in cuffs if you don't back up." § 87(2)(b) continues to approach PO Olivero and argues that he has blood on his hand (Board Review 02).

PO Sparacio's BWC footage shows at the 1:09 timestamp of the audio recording, § 87(2)(b) walks towards PO Sparacio and yells, "Let him get his stuff, what the fuck are you mad about?" At 1:14, PO Olivero places his right hand on § 87(2)(b)'s stomach and states that she is getting blood all over him and instructs her to back up. § 87(2)(b) continues to walk towards PO Sparacio and repeatedly pushes his hand off her. At 1:20, PO Sparacio states, "You're both going in cuffs." At 1:25, § 87(2)(b) states, "What, what, what, what, lock her up?" PO Sparacio asks § 87(2)(b) "Do you want to get locked up?" § 87(2)(b) asks PO Sparacio if he thinks she wants to and PO Sparacio states, "Then back up and stop grabbing me, you're getting blood all over me" (Board Review 02).

Sgt. Guerrier's BWC footage shows at the 2:00 timestamp of the video recording, § 87(2)(b) tells PO Constantatos, "Get the fuck off me" as he prevents her from getting to § 87(2)(b) who is handcuffed and seated behind PO Constantatos. At 2:03, Sgt. Guerrier approaches § 87(2)(b) and asks, "Can you walk away please?" At 2:06, § 87(2)(b) says, "No! Can you talk to the bus driver?" At 2:07, Sgt. Guerrier states, "Alright, if you don't walk away, you will be brought back to the 113th Precinct." § 87(2)(b) insists that Sgt. Guerrier speak to the bus driver. At 2:12, Sgt. Guerrier states, "Ma'am, I'm giving you an opportunity to leave." § 87(2)(b) continues to insist that Sgt. Guerrier speak to the bus driver (Board Review 02).

After having been instructed to leave the scene numerous times by numerous officers, PO Piteo's BWC footage shows at the 4:04 timestamp of the video recording, § 87(2)(b) approaches

PO Piteo, who extends her arms out and grabs § 87(2)(b)'s arms. Sgt. Villegas tells § 87(2)(b) that she has to wait there, and PO Piteo tells § 87(2)(b) that she has to wait. § 87(2)(b) tells PO Piteo, "Don't fucking touch me, bitch," as she moves away from her. At 4:07, Sgt. Villegas guides § 87(2)(b) towards a wall as he repeatedly tells her to stop. At 4:11, PO Jordan approaches Sgt. Villegas and tells § 87(2)(b) "Do yourself a fucking favor and listen" (analyzed below). § 87(2)(b) then tells PO Jordan to stop talking to her and calls him a "bitch." At 4:20, Sgt. Villegas tells § 87(2)(b) "You're about to get arrested." § 87(2)(b) asks for what and Sgt. Villegas responds, "Disorderly conduct. Are you going to walk away or not?" At 4:26, § 87(2)(b) responds, "What do you mean I'm going to walk away, my boyfriend is getting handcuffed, for what?" At 4:30, PO Piteo and Sgt. Villegas place § 87(2)(b) in handcuffs (Board Review 02).

Sgt. Guerrier stated that § 87(2)(b) was acting "irate" by screaming profanities and not obeying lawful orders to leave the scene. § 87(2)(b) had been asked to leave the scene by numerous officers including PO Olivero and PO Sparacio. Sgt. Guerrier advised § 87(2)(b) to leave the scene and told her that she had been given multiple opportunities and orders to leave the scene. Sgt. Guerrier asked § 87(2)(b) to leave the scene more than three times. § 87(2)(b) told Sgt. Guerrier to go speak to the bus driver. § 87(2)(b) repeated that she was not leaving and acted disorderly by screaming and cursing. Sgt. Guerrier told § 87(2)(b) that if she did not leave, she would be arrested and brought back to the 113th Precinct. § 87(2)(b) could have also been arrested for pushing PO Sparacio and PO Olivero prior to Sgt. Guerrier's arrival on scene (Board Review 03).

According to NY Penal Law §195.05, a person is guilty of obstructing governmental administration when he/she intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means or intimidation, physical force or interference, or by means of any independently unlawful act, or by means of interfering (Board Review 07).

According to NY Penal Law § 240.20, a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: 5. He/she obstructs vehicular or pedestrian traffic (Board Review 08).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Within NYPD Guidelines**. Being that PO Sparacio resigned from the NYPD, it is recommended that **Allegation D** be closed as **Subject Resigned**.

§ 87(2)(g)

It is therefore recommended that **Allegation H** and **Allegation L** be closed as **Within NYPD Guidelines**.

Allegation (C) Discourtesy: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Anthony Sparacio spoke discourteously to § 87(2)(b)

Allegation (I) Discourtesy: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Sergeant Guerdy Guerrier spoke discourteously to § 87(2)(b)

Allegation (J) Discourtesy: Police Officer Eric Jordan spoke discourteously to § 87(2)(b)

§ 87(2)(b)

Allegation (K) Discourtesy: On August 13, 2022, at Baisley Boulevard & Merrick Boulevard in Queens, Police Officer Eric Jordan spoke discourteously to § 87(2)(b)

Allegation (O) Discourtesy: On August 13, 2022, at the 113th Precinct located at 167-02 Baisley Boulevard in Queens, Police Officer Anthony Mkwanazi spoke discourteously to § 87(2)(b)

§ 87(2)(g)

PO Sparacio's BWC footage shows from the 00:52 timestamp of the video recording through the 1:02 timestamp, § 87(2)(b) is not handcuffed and continuously moving towards PO Olivero and PO Sparacio. § 87(2)(b) is given numerous orders to back up by PO Sparacio and PO Olivero. At 1:03, § 87(2)(b) approaches PO Sparacio and PO Sparacio pushes him back near the sidewalk as he yells, "Back up! Back the fuck up" (Board Review 02).

Sgt. Guerrier's BWC footage shows at the 2:13 timestamp of the video recording, after § 87(2)(b) has been instructed to leave or be taken back to the 113th Precinct by Sgt. Guerrier, he gives § 87(2)(b) an opportunity to leave repeatedly as § 87(2)(b) insists that Sgt. Guerrier speak to the bus driver. At 02:20, § 87(2)(b) states that she did not do anything and states, "If you put me in handcuffs, I'm suing the fuck out of ya'll." At 2:23, Sgt. Guerrier responds, "You can sue, I don't give a fuck." § 87(2)(b) responds that she knows that he does not care, and Sgt. Guerrier instructs her to leave again before walking away from her (Board Review 02).

PO Locascio's BWC footage shows at the 4:35 timestamp of the video recording, after Sgt. Guerrier's above-cited interaction with § 87(2)(b) § 87(2)(b) asks the officers on scene why they were stopped. At 4:39, PO Jordan states, "I just showed up." At 4:43, § 87(2)(b) attempts to walk past PO Jordan as she asks officers behind him why she was stopped. PO Jordan extends his left hand out onto § 87(2)(b)'s stomach and instructs her to get out of his face. § 87(2)(b) tells PO Jordan, "Don't fucking touch me." At 4:46, PO Jordan responds, "Then get out of my face." § 87(2)(b) moves closer to PO Jordan and asks him again why he stopped her. PO Jordan responds that he did not stop her. At 4:56, PO Jordan asks § 87(2)(b) to get out of his face again and states that he does not know why they were stopped as he was not there. At 5:16, § 87(2)(b) moves closer towards PO Jordan and leans her upper body forward as she looks behind PO Jordan to where § 87(2)(b) is seated on the ground. At 5:17, PO Jordan guides § 87(2)(b) away from him and states, "I'm asking you to get out of my face." § 87(2)(b) jerks her right arm away from PO Jordan and pushes his hand away as she says, "I said don't touch me." At 5:20, PO Jordan states, "Get out of my fucking face." § 87(2)(b) then moves away from PO Jordan and says that she is not touching him or doing anything irrational (Board Review 02).

PO Wright's BWC footage shows at the 3:12 timestamp of the video recording, § 87(2)(b) then argues with PO Locascio, after speaking with PO Jordan, about not needing his help. PO Piteo then tells § 87(2)(b) that she has to wait, out of frame. § 87(2)(b) is heard saying, "Don't fucking touch me, bitch." At 3:18, Sgt. Villegas guides § 87(2)(b) against a wall as he repeatedly tells her to stop. At 3:21, PO Jordan approaches Sgt. Villegas and § 87(2)(b) and tells § 87(2)(b) "Why don't you do yourself a favor. Do yourself a fucking favor and listen." § 87(2)(b) calls PO Jordan a "bitch" and tells him that he is not being respectful (Board Review 02).

PO Mkwanazi's BWC footage shows at the 7:34 timestamp of the video recording, § 87(2)(b) is at the stationhouse near a holding cell and is being held up by his arms by PO Wirth and

PO Rios as he throws his weight down. § 87(2)(b) screams loudly and repeatedly, “You can’t do that to her.” § 87(2)(b) is seen sliding his feet on the ground while he is being held up. At 7:40, PO Mkwanazi tells § 87(2)(b) to relax and § 87(2)(b) kicks PO Mkwanazi on the leg. PO Mkwanazi grabs § 87(2)(b) left leg off the ground and § 87(2)(b) is placed in leg shackles. At 8:05, as PO Wirth removes a drawstring from § 87(2)(b) cargo shorts, § 87(2)(b) yells, “See now you’re going to try to make it tighter, faggot!” At 8:05, PO Mkwanazi wipes his face and states, “Bro! Can you not fucking spit.” PO Wirth pulls the drawstring away from § 87(2)(b) body as PO Mkwanazi cuts it off (Board Review 02).

Sgt. Guerrier stated that § 87(2)(b) was “hostile” by using profanity towards the officers on scene and by trying to get to § 87(2)(b) who was under arrest. § 87(2)(b) also behaved disorderly by screaming. Sgt. Guerrier told § 87(2)(b) “You can sue, I don’t give a fuck,” because it was a “highly charged situation.” Sgt. Guerrier used profanity because § 87(2)(b) was not listening. There was no other reason as to why Sgt. Guerrier used profanity (Board Review 03).

PO Jordan did not recall using profanity towards § 87(2)(b). PO Jordan was presented with PO Locascio’s and PO Wright’s above-cited BWC footage during his CCRB interview and acknowledged using profanity towards § 87(2)(b). PO Jordan used profanity because he asked § 87(2)(b) to back up and get out of his face numerous times and § 87(2)(b) refused and kept trying to walk past them and interfere with the situation. There was no other reason as to why PO Jordan used profanity (Board Review 06).

PO Mkwanazi denied using any profanity towards § 87(2)(b). PO Mkwanazi reviewed his above-cited BWC video during his CCRB interview. After reviewing the footage, PO Mkwanazi acknowledged that he told § 87(2)(b) “Can you not fucking spit?” PO Mkwanazi did not recall why he used profanity or made that statement but stated that it was likely in response to § 87(2)(b) conduct which he described as “irate” and “uncooperative.” PO Mkwanazi did not recall what § 87(2)(b) did that made him appear irate and uncooperative. There was no other reason as to why PO Mkwanazi used profanity (Board Review 05).

NYPD DCT Case No. 2015-15012 states that profane statements, when made in a dynamic context where officers are still trying to gain control, would not constitute misconduct (Board Review 11).

§ 87(2)(g)

It is therefore recommended that **Allegation I, Allegation J and Allegation K** be closed as **Within NYPD Guidelines**. § 87(2)(g)

It is recommended that **Allegation C** be closed as **Subject Resigned**.

§ 87(2)(g)

. It is

therefore recommended that **Allegation O** be closed as **Within NYPD Guidelines**.

Allegation (M) Discourtesy: On August 13, 2022, at the 113th Precinct located at 167-02 Baisley Boulevard in Queens, Sergeant Michael Desetto spoke discourteously to § 87(2)(b)

§ 87(2)(g)

Sgt. Desetto's BWC footage shows at the 5:50 timestamp of the video recording, Sgt. Desetto walks around the back of his vehicle around to the back passenger seat where § 87(2)(b) is seated. PO Wirth is standing outside of the vehicle in front of § 87(2)(b) who is seated in the back seat with the door open. § 87(2)(b) is heard telling PO Wirth, "Put it on. Put my sneaker on." PO Wirth states, "alright." At 5:55, § 87(2)(b) responds, "Why would you say alright? Can I put it on myself?" PO Wirth responds that he cannot as his hands are behind his back. At 6:00, § 87(2)(b) tells PO Wirth to put his sneakers on again. At 6:02, PO Wirth responds, "No, you put it on now." At 6:03, Sgt. Desetto states, "Alright take this guy out of the car, we're not his fucking slaves. Let's go." At 6:05, § 87(2)(b) responds, "That's what you told me? That's what you said?" Sgt. Desetto responds, "Yeah that's what I said." § 87(2)(b) responds, "God bless" and requests the Precinct number which PO Wirth provides. At 6:12, Sgt. Desetto walks around the back of the vehicle while § 87(2)(b) is being escorted near the front of the vehicle by PO Wirth and PO Rios. At 6:14, § 87(2)(b) is heard requesting Sgt. Desetto's name and shield number which Sgt. Desetto provides (Board Review 02).

Sgt. Desetto stated he transported § 87(2)(b) to the stationhouse along with PO Wirth and PO Rios. Upon arrival at the stationhouse, PO Wirth and PO Rios exited the vehicle and approached § 87(2)(b) to escort him out of the vehicle. § 87(2)(b) told one of the officers to put his shoes on for him and cursed at the officers. PO Wirth told § 87(2)(b) to put his feet into his shoes so that they can go into the stationhouse. § 87(2)(b) continued to yell and curse. Sgt. Desetto ordered the officers to take § 87(2)(b) out of the vehicle and stated, "We are not his fucking slaves." Sgt. Desetto was approximately eight to 10 feet away from § 87(2)(b). When asked why he used profanity, Sgt. Desetto responded, "It's just the way I talk, I guess. I'm surprised I haven't cursed ten times in here already." Sgt. Desetto wished to tell the officers to hurry up as it was best to get a prisoner in a confined space. There was no other reason as to why Sgt. Desetto used profanity (Board Review 04).

NYPD Patrol Guide Procedure 200-02 states that the Department is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with respect and dignity while efficiently rendering police services with courtesy and civility (Board Review 12).

§ 87(2)(g)

It is therefore recommended that **Allegation M** be closed as **Substantiated**.

Allegation (N) Abuse of Authority: On August 13, 2022, at the 113th Precinct located at 167-02 Baisley Boulevard in Queens, Police Officer Louis Wirth damaged § 87(2)(b) property.

§ 87(2)(b) stated that he was wearing a gold rope chain necklace, which was allegedly "popped" off his neck by PO Wirth while at the stationhouse. § 87(2)(b) clarified that PO Wirth held the chain with both hands and then pulled his hands in opposite directions, causing the

necklace to break (Board Review 09).

PO Wirth's BWC footage shows at the 3:45 timestamp of the video recording, PO Wirth escorts § 87(2)(b) in front of the desk with the assistance of PO Rios. At 3:50, PO Wirth reaches for § 87(2)(b) necklace and rotates it until he finds the clasp. § 87(2)(b) tells PO Wirth to stop touching him as he jerks his shoulders up. At 3:54, PO Wirth states that they have to take all of the jewelry off him. § 87(2)(b) asks, "For what?" At 3:56, PO Wirth responds, "because it's going to get vouchered, and you can get it later," as he attempts to unclasp the necklace with both hands. At 3:59, § 87(2)(b) yells, "For what?" as he jerks his right shoulder forward against PO Wirth's hands. When playing the footage frame by frame, (continuously pressing the "E" key on the keyboard while in VLC) the chain breaks when § 87(2)(b) jerks his body forward. PO Wirth still has both hands on the clasp and the necklace breaks from another section of the chain to the right of the clasp (Board Review 02).

Sgt. Guerrier stated that he was not present when § 87(2)(b) property was removed from his person at the stationhouse but learned that § 87(2)(b) necklace was damaged or broken when he reviewed the voucher. Upon independently reviewing BWC footage, Sgt. Guerrier observed that as an officer attempted to remove the necklace, § 87(2)(b) jerked his body which pulled against the chain and the chain "popped." Sgt. Guerrier did not recall whose body camera he reviewed, nor did he recall which officer attempted to remove the chain from § 87(2)(b) (Board Review 03).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). It is therefore recommended that **Allegation N** be closed as **Unfounded**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party.
- PO Olivero has been a member-of-service for five years and this is the first CCRB complaint to which he has been a subject.
- PO Sparacio has been a member-of-service for one year and this is the first CCRB complaint to which he has been a subject.
- Sgt. Guerrier has been a member of service for 10 years and has been a subject in two additional CCRB complaints and three additional allegations, none of which were substantiated. § 87(2)(g)
§ 87(2)(g).
- Sgt. Desetto has been a member of service for 11 years and has been a subject in two additional CCRB complaints and seven additional allegations, none of which were substantiated. § 87(2)(g)
§ 87(2)(g).
- PO Wirth has been a member of service for eight years and has been a subject in four additional CCRB complaints and six additional allegations, none of which were substantiated. § 87(2)(g)
§ 87(2)(g).
- PO Mkwanaazi has been a member of service for five years and has been a subject in one additional CCRB complaint and one additional allegation, which was not substantiated. § 87(2)(g)
§ 87(2)(g).
- PO Jordan has been a member of service for 16 years and has been a subject in three additional CCRB complaints and four additional allegations, of which three were substantiated.:

- _____

Mediation, Civil, and Criminal Histories

- [illegible]

Squad: 8

Investigator:	<u>Annette Rodriguez</u>	<u>Annette Rodriguez</u>	<u>03/02/2023</u>
	Signature	Print Title & Name	Date

Squad Leader: Ethan De Angelo IM Ethan De Angelo 03/02/2023
Signature Print Title & Name Date

Reviewer: _____

Signature	Print Title & Name	Date
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